

1.

CASE #	CASE NAME	HEARING NAME
CVPS2505619	LINDMAN VS THE ESTATE OF DAVID A. CONTIGIANI	MOTION TO DEPOSIT FUNDS WITH COURT AND ORDER OF DISCHARGE AND DISMISSAL

Tentative Ruling:

The Motion of Chase is granted. Chase is to deposit the sum of \$438,561.81 less attorney fees and costs of \$5125.55. for 10 hours of attorney time and the costs as presented, Upon making the deposit, Chase will be discharged of liability to any party to this action.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2203353	BLOOMAGE BEVERLY HILLS INVESTMENT INC. VS GUO	MOTION FOR NEW TRIAL

Tentative Ruling:

The Motion for new trail is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2405170	RODRIGUEZ VS CITY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT

Tentative Ruling:

This lawsuit is about the assault and battery of Plaintiff by an unidentified assailant. Although the assailant is unknown, Plaintiff has alleged that the person was an employee of Defendant Ability. The only cause of action alleged against Ability is the Fourth Cause of Action for Negligent Hiring, Supervision and Retention of an Unfit Employee and/or Vicarious Liability. (Separate Statement of Undisputed Material Facts ("UMF") No. 1; Exhibit A, Complaint, ¶¶ 39-42.) Thus, Plaintiff's only claim against Ability is premised on the assailant being an Ability employee.

On September 13, 2024, Plaintiff filed a Complaint for (1) assault; (2) battery; (3) intentional infliction of emotional distress; (4) negligent hiring, supervision & retention of an unfit employee; (5). Negligence and (6) premises liability.

Plaintiff has identified his assailant as a black male, approximately six feet tall, in a grey hoodie. (UMF No. 2, 3.) The police report corroborates Plaintiff's description, as it also states that the suspect was a Black male, 6'1" and 140 pounds. (UMF Nos. 4, 5.)

The video from the 7-Eleven store where the incident took place also conforms with Plaintiff's description that the assailant was a tall, African American male in a hoodie. (UMF Nos. 6, 7.) At the time of the incident, Ability did not have any African American male employees. (UMF No. 8.) Therefore, it is not possible that the assailant was an employee of Ability. (UMF No. 9.)

Defendant Ability now moves for summary judgment against Plaintiff, or, alternatively summary adjudication of issues on the following issues:

ISSUE ONE: The only cause of action stated against Ability is the Fourth Cause of Action.

ISSUE TWO: Defendant Ability has no liability under the Fourth Cause of Action because the Assailant was not an Ability employee.

In support of the motion, Defendant submits:

- Memorandum of Points and Authorities
- Separate Statement of Undisputed Material Facts ("UMF")
- Declaration of Kenneth W. Baisch ("Baisch Decl."), including:
 - Ex. A: Complaint
 - Ex. B: Deposition Transcript of David Rodriguez
 - Police Report
 - Video of Incident (Lodged)

In Opposition, Plaintiff contends that: (1) Defendant failed to meet its burden of persuasion and production because the entire motion is based on the contention that the assailant was not an employee of Ability Counts because Ability Counts did not have any African American employees at the time of the assault. That argument completely ignores the fact that Plaintiff did not unequivocally state that the assailant was African American.

In support of the Opposition, Plaintiff submits:

- Memorandum of Points and Authorities
- Opposing Separate Statement
- Appendix of Exhibits, including:
 - Ex. A: Response to Plaintiff's Requests for Production of Documents, Set One;
 - Ex. B: Riverside Police Dept. Office Report
 - Deposition of Plaintiff David Rodriguez

In Reply, Defendant contends that: (1) the only evidence is that the assailant was a tall black man, and Ability did not employ any black men at that time; (2) the only evidence that the van belonged to Ability is speculation and a Plaintiff cannot rely on speculative evidence in opposition to a motion for summary judgment.

Analysis

I. Standard

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (CCP § 437c(c)). A defendant moving for summary judgment bears the initial burden of proving that there is no merit to a cause of action by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (CCP § 437c(p)(2); *Cucuzza v. City of Santa Clara* (2002) 104 Cal.App.4th 1031, 1037). Once the defendant has made such a showing, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849). The opposing party may not rely upon the allegations or denials in its pleadings, but must “set forth the specific facts showing that a triable issue of material fact exists.” (CCP § 437c(p)(2)). Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, *disapproved on another ground in Turner v. Anheuser–Busch, Inc.* (1994) 7 Cal.4th 1238). Although summary judgment is no longer considered a “disfavored” procedure, the moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838).

II. Merits

Here, only cause of action pleaded against Ability is the fourth cause of action for Negligent Hiring, Supervision and Retention of an Unfit Employee. That cause of action also has allegations claiming vicarious liability for the acts of an employee. (Complaint, ¶¶ 40-42.) Thus, Plaintiff’s only claims are based upon Ability’s alleged employment of the assailant.

To establish liability on a negligence claim, “the plaintiff must demonstrate that the defendant owed a duty to the plaintiff, that the defendant breached that duty, and that the breach proximately caused the plaintiff’s injuries.” (*John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1188.) In order to state any claim for negligent employment, training, or retention, or for there to be any duty owed to the Plaintiff, the assailant must be an employee at the time of the incident. (*Phillips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1141-1145.) Similarly, there cannot be vicarious liability for the acts of an employee where the incident is unrelated to the employment of the tortfeasor. (*Farmers Ins. Group v. County of Santa Clara* (1995) 11 Cal.4th 992, 1006.)

Again, Plaintiff has identified his assailant as a black male, approximately six feet tall, in a grey hoodie. (SSUMF No. 2, 3.) The police report corroborates Plaintiff’s description, as it also states that the suspect was a Black male, 6’1” and 140 pounds. (SSUMF Nos. 4, 5.) The video from the 7-Eleven store where the incident took place also conforms with Plaintiff’s description that the assailant was a tall, African American male in a hoodie. (SSUMF Nos. 6, 7.) At the time of the incident, Ability did not have any African American male employees. (SSUMF No. 8.) Therefore, it is not possible that

the assailant was an employee of Ability and there is no triable issue of fact giving rise to liability. (SSUMF No. 9.)

It is undisputed that Defendant's entire motion is based on the contention that the assailant was not an employee of Ability Counts because Ability Counts did not have any African American employees at the time of the assault. In the Opposition, Plaintiff speculates that Plaintiff did not identify the assailant with absolute certainty, and the evidence gives rise to reasonable competing inferences supporting liability. According to Plaintiff, the evidence establishes that the assailant was associated with a landscaping crew operating vehicles tied to Ability operations. Plaintiff testified that the assailant was the driver of one of Ability's vans.¹

According to Plaintiff, the investigating detective was informed that the fleet vehicles involved "sounded as if it belonged to the Ability Counts landscaping team." When interviewed by police, Ability employee Jose Ramirez admitted the suspect description reminded him of a former Ability employee. Most importantly, Ability later provided police with the possible suspect's identity, advised that he worked as a "job coach," and confirmed he left employment shortly after the incident. According to Plaintiff, Defendant's motion conspicuously omits those critical facts: rather than conclusively negating agency or employment, Defendant's own evidence creates triable issues regarding whether the assailant was an Ability Counts employee, former employee, job coach, temporary worker, or person operating within Ability Counts' landscaping operations. Per Plaintiff, at minimum, the evidence gives rise to conflicting reasonable inferences that cannot be resolved on summary judgment. Also, per Plaintiff Defendant failed to conclusively eliminate triable issues of fact regarding agency, employment, and liability.

Defendant has the better argument. Here, there is no evidence that, at the time of the accident on September 22, 2023, Plaintiff or anyone else identified the assailant as having lighter skin or possibly being part Hispanic. He was specific in identifying the assailant as Black. Over two years later², and represented by counsel, Plaintiff amended his description of the assailant at deposition. The new description was that the assailant was "really tall" and "a black man but with lighter skin, and he had a hoodie on, a gray hoodie, gray sweater." When asked if the assailant looked Hispanic, the Plaintiff speculated that the assailant "Could have been mixed." (Moving Papers, Exhibit B, 125:1-126:11.) He did not claim, even then, that the assailant looked Pacific Islander, mixed Pacific Islander. Further, Plaintiff provided no declaration in opposition to this motion, much less one that could raise a triable issue of fact.

According to Plaintiff, the only employee Ability had at the time of the incident with dark skin was a temporary worker who "appeared to be a Pacific Islander." (Motion, Jurisch Decl., ¶2.) However, no one has ever claimed that the assailant looked like a Pacific Islander or that the employee appeared to be Black. If it were so, Plaintiff, who told the investigating officer that he could identify the assailant (Moving Papers, Exhibit B, 5:33-34), could have provided a declaration in opposition to this motion speculating

¹ The Opposition makes factual arguments without tying them to evidence in the opposing Separate Statement.

² Plaintiff's deposition took place on September 12, 2025.

that the assailant could have been part Pacific Islander. But he didn't provide such a declaration. The employees of the 7-Eleven where the incident took place could not identify the assailant. (Id. at 6:40-41.) There also does not appear to be any evidence tying the temporary worker to the incident. It is just too speculative.

As noted by Defendant, the only evidence tying Ability to the incident is the fact that the assailant was driving a white van, and Ability had white vans in the area. However, this is speculation, just like the speculation that the assailant could possibly have been mixed race Black and Hispanic. While Ability admits that it has white vans, they are not the only owners of white vans. No one has ever claimed that the van had any lettering or identifying marks that the van belonged to Ability. No one claims that the clothing on the assailant identified him as working for Ability. Because speculation is not evidence, speculation cannot create a triable issue of fact precluding summary judgment. (*Apex Solutions, Inc. v. Falls Lake Mgt. Co.* (2024) 100 Cal.App.5th 1249, 1257.)

Here, there is only speculation that the tall, Black man driving a white van was an employee of Ability. Nothing reasonably inferable from admissible evidence connects Ability to the incident. Ability has provided evidence that it did not employ a Black man at the time of the incident, which negates completely Plaintiff's claims of negligence and/or vicarious liability for an assault by a Black man. In order to be vicariously liable for the acts of an employee, the individual must be an employee acting in the course and scope of his employment. (*Jeewarat v. Warner Bros. Entertainment, Inc.* (2009) 177 Cal.App.4th 434-435.) Here, there is no evidence that the assailant was an employee, much less one acting in the course and scope of employment by Ability.

Plaintiff relies only on speculation that the Black man he saw was in fact, not Black, as he repeatedly has stated, but instead, Pacific Islander, as to whom there is no evidence connecting to the incident, nor any Declaration nor testimony. Accordingly, Defendant has met its burden on this motion and the burden shifted to Plaintiff to create a triable issue of material fact. (CCP § 437c(p)(2).) Plaintiff failed to meet this burden.

Ruling: Grant motion.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504847	JIMENEZ VS AMAZON.COM SERVICES, LLC	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

Plaintiff Delia Diaz Jimenez alleges that she began working for Defendant Amazon on 10/27/20 as a Fulfillment Associate, processing returns. In November 2024, Plaintiff suffered a back injury and went on approved medical leave. While on leave, Defendant advised Plaintiff that it had not received medical documentation for her leave, and Plaintiff re-submitted it again. Plaintiff learned that Defendant had placed her back on